

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1158

Introduced by Dungan, 26.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to motor carriers; to amend section 75-304.04,
- 2 Revised Statutes Cumulative Supplement, 2024; to change provisions
- 3 relating to the interstate transportation for hire of employees of a
- 4 railroad carrier; and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 75-304.04, Revised Statutes Cumulative
2 Supplement, 2024, is amended to read:

3 75-304.04 (1) Any motor carrier, including a transportation network
4 company, operating in this state engaged in the intrastate transportation
5 for hire of employees of a railroad carrier engaged in interstate
6 commerce to or from their work locations shall apply to the commission
7 for a license prior to transporting such employees in intrastate
8 commerce. A license shall be issued by the commission to any qualified
9 applicant upon payment of a license fee of two hundred fifty dollars and
10 receipt of a completed application in which the principal place of
11 business of the applicant in the State of Nebraska is identified and the
12 applicant agrees and affirms to perform the service in conformance with
13 section 75-307 and the rules and regulations adopted and promulgated by
14 the commission relating to driver qualifications, equipment, operating
15 standards, and record keeping. Otherwise the application shall be denied.
16 Applications for initial and renewal licenses shall be on forms
17 prescribed by the commission. A license issued under this section shall
18 be valid for one year and may be renewed annually for a fee of two
19 hundred fifty dollars. A license may be suspended or revoked by the
20 commission after notice and hearing for failure to comply with section
21 75-307, and any rule or regulation adopted and promulgated under this
22 section, or any lawful order of the commission.

23 (2) Any person who applies for a license pursuant to this section
24 shall comply with the requirements of section 75-307. The commission
25 shall have no authority to regulate the rates of any motor carrier who is
26 issued a license under this section.

27 **Sec. 2.** Original section 75-304.04, Revised Statutes Cumulative
28 Supplement, 2024, is repealed.